

For cases where the cause of non-compliance with a time limit involves some error in the carrying out of the party's intention to comply with the time limit, the case law has established the criterion that due care is considered to have been taken if non-compliance with the time limit results either from **exceptional circumstances** (see in this chapter [III.E.5.3.](#)) or from an **isolated mistake within a normally satisfactory monitoring system** (see in this chapter [III.E.5.4.](#)).

The party requesting re-establishment of rights bears the burden of making the case and proving that the requirements are met ([J 5/80](#), OJ 1981, 343; [J 18/98](#); [T 592/11](#); [J 3/13](#); [J 14/16](#); [T 2016/16](#); [T 2331/14](#); [T 2406/16](#)).

5.3. Exceptional circumstances

5.3.1 Organisational restructuring

In [T 14/89](#) (OJ 1990, 432), due to internal reorganisation and removals, the [R. 58\(5\) EPC 1973](#) communication did not reach the responsible department of the patent proprietor. The board found that this fact, which led to non-observance of the time limit, constituted an isolated mistake such as could not be ruled out despite careful company organisation.

5.3.2 Change to or withdrawal of representation

In [J 13/90](#) (OJ 1994, 456) the applicant, a small firm employing about 15 people, was in takeover negotiations with another company. In the course of the negotiations a change of attorney took place. As a result of the unforeseeable breakdown in negotiations plus the fact that action had already been taken to replace the previous attorney, payment of the fourth-year renewal fee had been overlooked. This isolated mistake in a special situation was, in the Legal Board's opinion, excusable.

In [J 11/06](#) the appellant submitted that, due to the removal and later change of the US representative, there was some confusion caused by this reorganisation. However, the Legal Board noted that no details at all had been given as to why this affected the payment of the renewal fee. Likewise in [J 4/07](#) the Legal Board did not recognise the presence of exceptional circumstances where the responsibility of the law firm for the payment of the renewal fee ceased to exist roughly one month before the end of the time limit. The board considered a period of about one month to be largely sufficient for effecting payment, even in the wake of an attorney's move from one firm to another. The representative's submissions were also inadequate.

In [T 1201/10 of 28 February 2018](#) the board was convinced that there were exceptional circumstances prior to the due date which could not reasonably have been foreseen by the appellant (applicant). In the period leading up to the due date the appellant was unrepresented, as the firm representing the firm had withdrawn from representation and with this withdrawal, the sub-authorisation for the person who eventually became the new representative also ceased. These circumstances, which were predominantly outside the

appellant's control, directly resulted in the appellant being unable to observe the time limit for payment of the renewal fee.

5.3.3 Complex transfers of company ownership

In T 469/93 the board found that even if all due care required by the circumstances were to be exercised, the occasional error during complex transfers of company ownership could not entirely be avoided. The error in this case being an exceptional one, the causes of which were remedied, the appellant's request for re-establishment of rights was allowed.

5.3.4 Monitoring or computer systems matters

In J 21/92 and J 24/92 the applicant and his representative (both Americans) had each changed their fee-monitoring system, independently of each other. The situation was further complicated by the fact that the representative was no longer responsible for paying the appellant's renewal fees.

In T 369/91 (OJ 1993, 561) the relevant circumstances involved moving from a manual to a computerised time-limit monitoring system. Here "due care" meant ensuring that during the changeover period the representatives handling the various kinds of cases were told which system – manual or computerised – had generated the reminder in question. Only then could they reliably know if and when a further reminder was likely.

In T 489/04 the board did not recognise the installation of a new computer system as an extraordinary circumstance. On the contrary, it considered the resulting burden on employees as foreseeable and containable, had appropriate measures been taken in good time. In J 14/16 the Legal Board was not convinced that a computer-system breakdown and the ensuing substantial data loss and organisational disruption, qualified as exceptional circumstances.

In J 6/18 a technical error occurred in server migration, which affected the US attorney's docketing database and email communication. This could be considered as an isolated mistake in a system which apparently had operated efficiently for several years. There was in the Legal Board's view no necessity for more redundancy in the attorney's system for monitoring time limits.

5.3.5 Sudden serious illness and severe psychological stress

In T 525/91 of 25 March 1992 the board found it credible that the sudden and unforeseen diagnosis of illness and the announcement of the urgent need for a major operation caused the appellant's representative not only great physical weakness but also severe psychological stress. In those circumstances, and in view of the short period between diagnosis and hospital admission (two working days) and the proven absence of the secretary on one of those working days, it had to be acknowledged that even on the days between diagnosis and admission the representative had been in an exceptional situation which impeded him from devoting the necessary attention to the imminent time limit and from taking the precautions needed to ensure that it was observed. In the circumstances

the board deemed the conditions for re-establishment to have been met. See also T 558/02 of 9 August 2002.

In T 387/11 the representative put forward a credible case that he had failed to observe the time limit for filing the statement of grounds because of severe psychological stress caused by a sudden and unexpected bereavement (see also T 970/12).

In T 600/18 the board held that the stress of the situation, in which the representative was forced by the circumstances to act himself instead of his well trained and supervised staff, as a consequence of being under pressure to let his staff leave early due to extremely poor weather conditions, could not be equated with one where a patent attorney was incapable of taking sound decisions due to sudden serious illness or a sudden and unexpected bereavement, as in cases T 525/91 or T 387/11.

In J 17/16 the Legal Board was satisfied that the appellant's executive manager had been suffering from unusually severe psychological stress owing to the demands on her time and the emotional distress associated with caring for her seriously ill father-in-law and with her mother's death (more than six months before expiry of the time limit at issue) and so, despite having taken due care, had not been in a position to observe the time limit for claiming priority.

However, in this context, the case law also requires an **effective system of staff substitution in case of absence** (see in this chapter III.E.5.4.5 "All due care in making provisions for staff absences").

5.4. Isolated mistake within a satisfactory system for monitoring time limits or for processing mail

An isolated mistake by an assistant that happens in a normally satisfactory system is excusable; for cases in which such a mistake occurred and the request for re-establishment was granted see, for example, T 462/02 of 11 February 2003, T 221/04 of 5 May 2004, T 836/09 of 17 February 2010, T 1815/15. The appellant or his representative must plausibly show that a normally effective system for monitoring time limits prescribed by the EPC was established at the relevant time in the office in question (J 2/86, J 3/86, OJ 1987, 362; J 23/92; T 428/98, OJ 2001, 494; J 3/12; J 4/12).

5.4.1 "Isolated mistake" by representative

The case law on "an isolated mistake in an otherwise satisfactory system" cannot be relied on to ignore a failure to act by the professional representative himself, unless there are special circumstances (T 1095/06).

In T 592/11 the board held that an isolated mistake by a professional representative in performing his check on the time limit once he has received the file to deal with was – as a rule at least – inexcusable (see also R 18/13 with reference to the travaux préparatoires).

In T.198/16 the representative did not notice that payment of the appeal fee had not been made. Different from an isolated mistake that an assistant may make, the board found that such a mistake was not excusable in a representative.

See also chapter III.E.5.5.4 e) "Ultimate responsibility of the representative".

5.4.2 A system operating efficiently for many years as evidence that it is normally satisfactory

The fact that a system had operated efficiently for many years has been put forward as evidence in many decisions that it was normally satisfactory (see J.31/90, J.32/90, T.309/88 of 28 February 1990, T.30/90, J.7/15). In T.130/83 of 8 May 1984 the board stated that if a proper reminder system was instituted by a representative in order to guard against the consequences of oversight in a busy office, this was itself strong prima facie evidence of the taking of care by the representative (see also T.869/90 of 15 March 1991, T.715/91, T.111/92 of 3 August 1992).

However, in T.1465/07, the board disagreed with the view that a monitoring system of time limits can be held to have been normally satisfactory because it worked without previous problems even though doubts existed. Evidence that such a monitoring system operated efficiently for many years will weigh in favour of a finding of a normally satisfactory character but will be counterbalanced by evidence that main features of such a satisfactory character, such as an independent cross-check, are missing. In that case a satisfactory character will be excluded (see also T.1962/08, J.14/16, J.9/16).

In T.1764/08 the board considered that the mere allegation that the case at issue was the first instance of unintended failure in filing an appeal does not show that all due care was normally observed and does not prove that a satisfactory system was in place in the representative's office.

5.4.3 Cause of mistake remains unclear

In T.529/09 the board allowed the request for re-establishment of rights. The board accepted that the representative's firm had a well-functioning and reliable system in place for processing incoming mail and monitoring time limits. The fact that in the case at issue the communication was apparently misplaced (since it did not reach the representative in charge and the time limit set in it was not entered in the computer system of the firm) had to be regarded as an isolated mistake in an otherwise satisfactory system. While the **precise circumstances of the mistake could not be elucidated any further**, this was not a sufficient reason for denying that all due care required by the circumstances had been observed in the present case. See also T.580/06, T.1355/09.

In J.7/15 the Legal Board could not determine with any degree of certitude what caused the non-payment of the renewal fee. The applicant had used the services of an external company for paying the renewal fees, a system which had worked flawlessly for more than 15 years, but failed in the case in hand. In the circumstances the board followed the

reasoning of T.529/09 and gave the benefit of the doubt to the appellant, granting the request for re-establishment of rights.

5.4.4 Requirement for a cross-check

a) Cross-check should be independent in a large firm

In J.9/86 the Legal Board was of the opinion that in a large firm where a large number of dates had to be monitored at any given time, it was normally to be expected that at least one effective cross-check was built into the system (T.223/88, J.26/92, T.808/03 of 12 February 2004, T.1149/11).

In T.828/94 the board held that given the size of the representative's office, a proper monitoring system should have contained some form of cross-check, for example that someone would be responsible for checking independently of the representative and the assistant whether any notice of appeal had been filed or was being prepared, and for raising the alarm if no data concerning such a notice – or a decision not to appeal – had been entered into the computer near the due date. In T.257/07 the board emphasised that an independent cross-check must necessarily include either another person or an automated system alerting another person (see also J.9/16 on the meaning of "independent"; T.76/17).

In T.686/97 of 12 May 1998 the board held that the provision of a "redundant" or "failsafe system" was an essential component of a normally satisfactory reminder system in corporate patent departments. The failure to provide administrative reminders to the responsible patent attorneys of the time limits applying to the filing of statements of grounds of appeal was incompatible with the operation of a normally satisfactory system.

In T.428/98 (OJ 2001, 494) the board stressed the exceptional nature of the ruling in J.31/90 and T.166/87 of 16 May 1988 (which concerned cross check mechanisms in small offices; see in this chapter III.E.5.4.4.b) below) and said that according to the appellant's submission his representatives' office was staffed by two patent agents, two lawyers, a partly qualified patent lawyer ("Patentassessor") and a law graduate, i.e. six people dealing in their main professional capacity with cases relating to intellectual property rights. Such cases being commonly subject to time limits, with immediate negative legal consequences for the client if they were missed, time-limit monitoring in such an office was a major undertaking in terms of both significance and scale. The board therefore deemed a cross-checking mechanism to be essential. See also T.1962/08, T.1726/08 (a firm with 40 attorneys at four locations is not small), T.479/10.

In T.283/01 of 3 September 2002 the board pointed out that the applicant's system was not properly designed to handle the appeal in question, involving partial responsibility of an external representative. The deviation from the normal way of filing and prosecuting an appeal had been the applicant's deliberate decision in the particular circumstances of the case. Taking all due care required by the circumstances of the case should have implied installing an individual control mechanism, offering a realistic possibility of detecting and correcting the failure to note and calculate the time limit for filing the statement of grounds.